



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

[HCR 2051](#): ballot measures; circulators; revenue; disclosure

CARBONE FLOOR AMENDMENT

1. Removes the requirement for a paid circulator to verbally disclose their first name upon approaching a potential petition signer.
2. Strikes the requirement for a paid circulator to have their first name and last initial clearly displayed on a badge when approaching a potential petition signer.

CARBONE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.C.R. 2051
(Reference to printed resolution)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The resolution as proposed to be amended is reprinted as follows:

2 1. Under the power of the referendum, as vested in the Legislature,
3 the following measure, relating to initiative and referendum, is enacted
4 to become valid as a law if approved by the voters and on proclamation of
5 the Governor:

6 AN ACT

7 AMENDING SECTIONS 19-102, 19-102.01, 19-118, 19-118.01 AND
8 19-141, ARIZONA REVISED STATUTES; RELATING TO INITIATIVE AND
9 REFERENDUM.

10 Be it enacted by the Legislature of the State of Arizona:

11 Section 1. Section 19-102, Arizona Revised Statutes, is
12 amended to read:

13 19-102. Initiative petition: circulators

14 A. The form of petition for a law or amendment to the
15 constitution of this state or county legislative measure, or
16 city or town ordinance, or amendment to a city or town charter
17 proposed by the initiative to be submitted directly to the
18 electors, shall be substantially in the form prescribed in
19 section 19-101, except that the title and body of such
20 petition shall read:

21 Initiative description

22 (Insert a description of not more than two
23 hundred words of the principal provisions of the
24 proposed measure or constitutional amendment.)

25 Notice: This is only a description of the proposed
26 measure (or constitutional amendment) prepared by the sponsor
27 of the measure. It may not include every provision contained
28 in the measure. Before signing, make sure the title and text

1 of the measure are attached. You have the right to read or
2 examine the title and text before signing.

3 Initiative Measure to be
4 Submitted Directly to Electors

5 We, the undersigned, citizens and qualified
6 electors of the state of Arizona, respectfully
7 demand that the following proposed law (or
8 amendment to the constitution, or other initiative
9 measure), shall be submitted to the qualified
10 electors of the state of Arizona (county, city or
11 town of _____) for their approval or
12 rejection at the next regular general election (or
13 county, city or town election) and each for
14 himself says: (terminate form same as a referendum
15 petition.)

16 B. Each petition sheet shall have printed on the top of
17 each sheet the following:

18 ~~It~~ It is unlawful to sign this petition
19 before it has a serial number. ~~It~~

20 C. Each petition sheet shall have printed in capital
21 letters in not less than twelve point bold-faced type in the
22 upper right-hand corner of the face of the petition sheet and
23 below the statement prescribed in subsection B of this section
24 the following:

25 ~~It~~ _____ paid circulator ~~It~~ _____
26 volunteer ~~It~~.

27 D. A circulator of an initiative petition shall state
28 whether the circulator is a paid circulator or volunteer by
29 checking the appropriate line on the petition form before
30 circulating the petition for signatures. ON APPROACHING A
31 POTENTIAL PETITION SIGNER, A PAID CIRCULATOR SHALL VERBALLY
32 DISCLOSE ~~[THE CIRCULATOR'S FIRST NAME,]~~ THE STATE IN WHICH THE
33 CIRCULATOR LEGALLY RESIDES AND THAT THE CIRCULATOR IS A PAID
34 CIRCULATOR. A PAID CIRCULATOR ALSO SHALL WEAR A BADGE THAT IS
35 CLEARLY VISIBLE, THAT STATES THAT THE CIRCULATOR IS A PAID
36 CIRCULATOR AND THAT BEARS ~~[THE CIRCULATOR'S FIRST NAME AND~~
37 ~~LAST INITIAL AND]~~ THE STATE IN WHICH THE CIRCULATOR LEGALLY
38 RESIDES.

39 E. Signatures obtained on initiative petitions in
40 violation of subsection D of this section are void and shall
41 not be counted in determining the legal sufficiency of the
42 petition. The presence of signatures that are invalidated
43 under this subsection on a petition does not invalidate other
44 signatures on the petition that were obtained as prescribed by
45 this section.

46 Sec. 2. Section 19-102.01, Arizona Revised Statutes, is
47 amended to read:

1 19-102.01. Initiative petitions; standard of review

2 A. Constitutional and statutory requirements for
3 ~~statewide~~ initiative measures must be strictly construed and
4 persons using the initiative process must strictly comply with
5 those constitutional and statutory requirements.

6 B. The secretary of state shall make available a sample
7 initiative petition that strictly complies with the
8 requirements of section 19-121. Any committee that uses the
9 sample initiative petition provided by the secretary of state
10 shall be presumed to have strictly complied with the
11 requirements of section 19-121.

12 Sec. 3. Section 19-118, Arizona Revised Statutes, is
13 amended to read:

14 19-118. Registered circulators; requirements;
15 violation; classification; definition

16 A. For ~~statewide~~ initiative and referendum measures
17 ~~only~~, INCLUDING MEASURES GOVERNED BY SECTIONS 19-141, 19-142
18 AND 19-143, all circulators who are not residents of this
19 state and all paid circulators must register as circulators
20 with the secretary of state before circulating petitions
21 pursuant to this title. The committee that is circulating the
22 petition shall collect and submit the completed registration
23 applications to the secretary of state. The secretary of
24 state shall establish in the instructions and procedures
25 manual issued pursuant to section 16-452 a procedure for
26 registering circulators, including circulator registration
27 applications, and shall publish on a website maintained by the
28 secretary of state all information regarding circulators that
29 is required pursuant to this section. The secretary of state
30 OR OTHER FILING OFFICER, AS APPLICABLE, shall disqualify all
31 signatures collected by a circulator who fails to register
32 pursuant to this subsection as provided for in section
33 19-121.01, subsection A.

34 B. The circulator registration application required by
35 subsection A of this section shall require the following:

36 1. The circulator's full name, residence address,
37 telephone number and email address.

38 2. The initiative or referendum petition on which the
39 circulator will gather signatures.

40 3. A statement that the circulator consents to the
41 jurisdiction of the courts of this state in resolving any
42 disputes concerning the circulation of petitions by that
43 circulator.

44 4. The address of the committee in this state for which
45 the circulator is gathering signatures and at which the
46 circulator will accept service of process related to disputes
47 concerning circulation of that circulator's petitions.

1 Service of process is effected under this section by
2 delivering a copy of the subpoena to that person individually,
3 by leaving a copy of the subpoena with a person of suitable
4 age or by mailing a copy of the subpoena to the committee by
5 certified mail to the address provided.

6 5. An affidavit from the registered circulator that is
7 signed by the circulator before a notary public and that
8 includes the following declaration:

9 I, _____ (print name) _____, under penalty of
10 a class 1 misdemeanor, acknowledge that I am
11 eligible to register as a circulator in the state
12 of Arizona, that all of the information provided
13 is correct to the best of my knowledge and that I
14 have read and understand Arizona election laws
15 applicable to the collection of signatures for
16 ~~a statewide~~ AN initiative or referendum.

17 C. Within five business days after submission and
18 review of a complete and correct circulator registration
19 application that complies with this section, the secretary of
20 state shall register and assign a circulator registration
21 number to the circulator.

22 D. A person may not register as a circulator pursuant
23 to this section if the person:

24 1. Has had a civil or criminal penalty imposed for a
25 violation of title 16 or this title within the immediately
26 preceding five years.

27 2. Has been convicted of treason or a felony and has
28 not been restored to civil rights as described in section
29 16-101, subsection A, paragraph 5.

30 3. Has been convicted of any criminal offense involving
31 fraud, forgery or identity theft.

32 E. If a registered circulator is properly served with a
33 subpoena to provide evidence in an action regarding
34 circulation of petitions and fails to appear or produce
35 documents as provided for in the subpoena, all signatures
36 collected by that circulator are deemed invalid. The party
37 serving the subpoena may request an order from the court
38 directing the secretary of state to remove any signatures
39 collected by the circulator as provided for in section
40 19-121.01, subsection A.

41 F. Any person may challenge the lawful registration of
42 circulators in the superior court of the county in which the
43 circulator is registered. A challenge may not be commenced
44 more than ten business days after the date that the secretary
45 of state's office has received, processed and made available
46 all final petition sheets individually numbered. The person
47 challenging signatures may amend that complaint after the

1 secretary of state has removed signatures and signature sheets
2 as prescribed in section 19-121.01. An action pursuant to
3 this section shall be advanced on the calendar and decided by
4 the court as soon as possible. Either party may appeal to the
5 supreme court within five calendar days after entry of
6 judgment. The prevailing party in an action to challenge the
7 registration of a circulator under this section is entitled to
8 reasonable attorney fees.

9 G. The removal or disqualification of any one or more
10 circulators does not invalidate the random sample of
11 signatures made pursuant to section 19-121.01, and the
12 secretary of state shall not be required to conduct any
13 additional random sampling of signatures.

14 H. A person who knowingly omits or misrepresents
15 information or provides false information on a circulator
16 registration application or who registers in violation of this
17 section is guilty of a class 1 misdemeanor.

18 I. For the purposes of this title, "paid circulator":

19 1. Means a natural person who receives monetary or
20 other compensation for obtaining signatures on ~~a statewide~~ AN
21 initiative or referendum petition or for circulating ~~statewide~~
22 initiative or referendum petitions for signatures.

23 2. Does not include a paid employee of any political
24 committee organized pursuant to title 16, chapter 6, unless
25 that employee has or will obtain two hundred or more
26 signatures on an initiative, referendum or recall petition in
27 an election cycle.

28 Sec. 4. Section 19-118.01, Arizona Revised Statutes, is
29 amended to read:

30 19-118.01. Signature collection; prohibited payments;
31 violation; classification

32 A. A person shall not pay or receive money or any other
33 thing of value based on the number of signatures collected on
34 ~~a statewide~~ AN initiative or referendum petition. Signatures
35 that are obtained by a paid circulator who violates this
36 section are void and shall not be counted in determining the
37 legal sufficiency of the petition.

38 B. A violation of this section is a class 1
39 misdemeanor.

40 Sec. 5. Section 19-141, Arizona Revised Statutes, is
41 amended to read:

42 19-141. Initiative and referendum in counties, cities
43 and towns

44 A. This chapter applies to the legislation of cities,
45 towns and counties, except as specifically provided to the
46 contrary in this article. The duties required of the
47 secretary of state as to state legislation shall be performed

1 in connection with such legislation by the city or town clerk,
2 county officer in charge of elections or person performing the
3 duties ~~as such~~ OF THAT OFFICE. The duties required of the
4 governor shall be performed by the mayor or the chairman of
5 the board of supervisors, the duties required of the attorney
6 general shall be performed by the city, town or county
7 attorney, and the printing and binding of measures and
8 arguments shall be paid for by the city, town or county in
9 like manner as payment is provided for by the state with
10 respect to state legislation. The provisions of section
11 19-124 with respect to the legislative council analysis do not
12 apply in connection with initiatives and referenda in cities,
13 towns and counties. The printing shall be done in the same
14 manner as other municipal or county printing is done.

15 B. Distribution of pamphlets shall be made to every
16 household containing a registered voter in the city, town or
17 county by the city or town clerk or by the county officer in
18 charge of elections by mail before the earliest date for
19 receipt by registered voters of any requested early ballot for
20 the election at which the measures are to be voted on. If the
21 pamphlet is not mailed before the earliest date for receipt of
22 a requested early ballot, the officer in charge of elections
23 shall provide a notice with the early ballots stating when the
24 pamphlets will be mailed and where and when the pamphlets may
25 be accessed or viewed. Any contract for pamphlet publication
26 or mailing, or both, shall provide for the contractor to pay a
27 penalty for each day of mailing that occurs on or after the
28 earliest date for receipt of requested early ballots. The
29 penalty shall be ~~one-cent~~ \$.01 for each household with a
30 registered voter for each day of late mailing, and the monies
31 shall be paid to the office of the officer in charge of
32 elections. Pamphlets shall not be mailed or carried less than
33 ten days before the election at which the measures are to be
34 voted ~~upon~~ ON.

35 C. Arguments supporting or opposing municipal or county
36 initiative and referendum measures shall be filed with the
37 city or town clerk or the county officer in charge of
38 elections not less than ninety days before the election at
39 which they are to be voted ~~upon~~ ON.

40 D. The procedure with respect to municipal and county
41 legislation shall be as nearly as practicable the same as the
42 procedure relating to initiative and referendum provided for
43 the state at large, except the procedure for verifying
44 signatures on initiative or referendum petitions may be
45 established by a city or town by charter or ordinance. ANY
46 MUNICIPAL OR COUNTY INITIATIVE OR REFERENDUM MEASURE THAT
47 PROPOSES A MANDATORY EXPENDITURE, ESTABLISHES A FUND FOR ANY

1 SPECIFIC PURPOSE OR ALLOCATES FUNDING FOR ANY SPECIFIC PURPOSE
2 MUST PROVIDE A DISCLOSURE OF THE EXPENDITURE, FUND OR
3 ALLOCATION AND THE SOURCE OF INCREASED REVENUES SUFFICIENT TO
4 COVER THE ENTIRE IMMEDIATE AND FUTURE COSTS OF THE PROPOSAL.
5 THIS DISCLOSURE SHALL BE PROVIDED IN THE INITIATIVE OR
6 REFERENDUM DESCRIPTION PRESCRIBED BY SECTION 19-101 OR 19-102.
7 E. References in this section to duties to be performed
8 by city or town officers apply only with respect to municipal
9 legislation, and references to duties to be performed by
10 county officers apply only with respect to county legislation.
11 F. The duties required of the county recorder with
12 respect to state legislation shall also be performed by the
13 county recorder with respect to municipal or county
14 legislation.
15 2. The Secretary of State shall submit this proposition to the
16 voters at the next general election as provided by article IV, part 1,
17 section 1, Constitution of Arizona.

18 Enroll and engross to conform
19 Amend title to conform

MICHAEL CARBONE

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